

UPSC GS-II POLITY

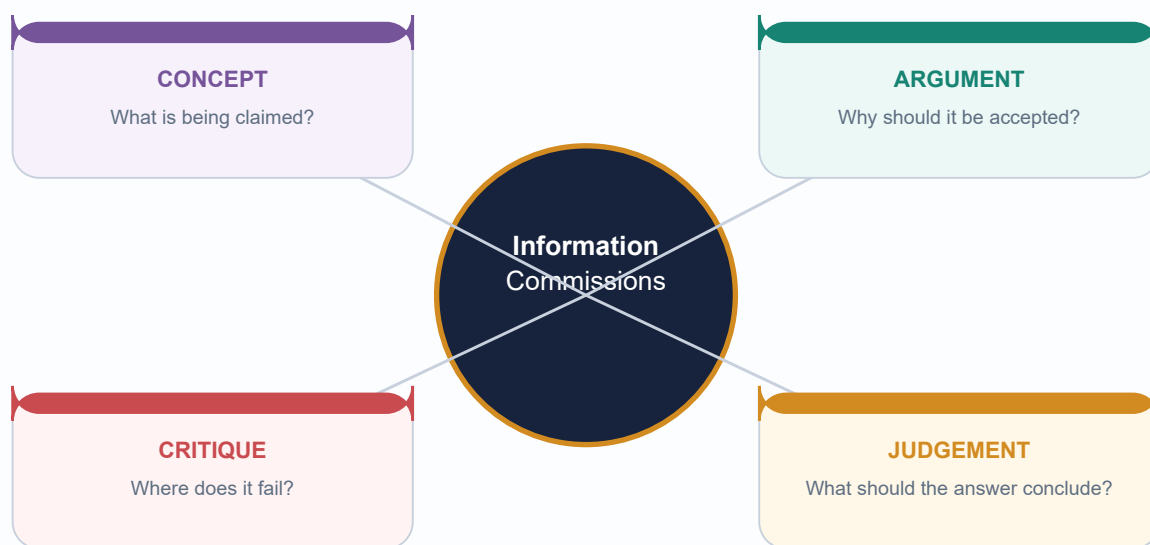
CIC & SIC — Information Commissions

Integrated Basic + Advanced Course

9 deep-learning modules | Right to Information Act, 2005

Institutional maps, appointment/removal flows, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (M. Laxmikant + official updates)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. CIC — Legal Basis, Origin & Mandate

GS-II Polity -
Statutory Bodies

NEWS TRIGGER

Every dispute over government transparency — from PM-CARES disclosures to electoral-bond records — ultimately routes through the Central Information Commission's appellate authority under the RTI Act, making its institutional design perennially exam-relevant.

INTRO & ORIGIN

The Central Information Commission was established in **2005** under the **Right to Information (RTI) Act, 2005** as a **high-powered independent statutory body** that decides complaints and appeals concerning offices, PSUs and financial institutions under the **Centre and Union Territories**.

The RTI (Amendment) Act, 2019 significantly altered CIC's tenure and salary framework without touching its core adjudicatory mandate.

TIMELINE

2005 — Right to Information Act enacted; CIC established as the central appellate authority.

2019 — RTI (Amendment) Act removes fixed 5-year term and Election Commission salary parity.

2019 Rules — RTI Rules, 2019 prescribe a 3-year term, subject to age 65.

2025 (CA) — DPDP Act, 2023 Section 44(3) substitution of RTI Section 8(1)(j) takes effect 13 Nov 2025.

CIC'S STATUTORY MANDATE

High-Powered Appellate Authority (RTI Act, 2005)

Complaints No PIO appointed, refusal, delay, unreasonable fees, false/incomplete info	Appeals Second appeal against a First Appellate Authority's order
Suo Motu Can inquire into a matter on its own initiative	Annual Report Submits an annual report on RTI implementation to Parliament

KEY DATA

Aspect	Detail
Legal basis	Right to Information Act, 2005
Nature	Statutory body — NOT constitutional
Established	2005
Jurisdiction	Offices, PSUs & financial institutions under the Centre and UTs

STATIC THEORY

- CIC is described as 'high-powered' precisely because it holds civil-court powers and can examine any public record — it is not a mere grievance-redressal desk.
- Its jurisdiction is Centre/UT-specific; state-government offices fall under the parallel State Information Commission (SIC).
- The Act's transparency objective (Section 8 exemptions aside) is now increasingly tested against the 2023 data-protection framework — a live, evolving syllabus intersection.

MEMORY HOOK

CIC = 2005 RTI Act -> Statutory, high-powered appellate body (Centre + UTs)

MUST-KNOW FACTS

1. CIC was established in 2005 under the RTI Act, 2005.
2. It is a statutory body, not a constitutional body.
3. Its jurisdiction covers Central Government offices, PSUs and financial institutions (including UTs).
4. It submits an annual report on RTI implementation to Parliament.

UPSC TRAPS

WRONG: CIC is a constitutional body established under a specific Article.

CORRECT: CIC is a statutory body established under the RTI Act, 2005.

MAINS ANGLE

Framework: Intro — define CIC as the 2005 statutory apex appellate authority for RTI. Body — link its mandate to citizens' right to information as part of Article 19(1)(a) jurisprudence (freedom of speech and expression). Conclusion — argue that CIC's efficacy is central to operationalising transparency as a democratic right, not just a procedural entitlement.

STUDY LINK

Polity -> Fundamental Rights (Art. 19(1)(a)) -> Right to Information -> CIC

HIGH

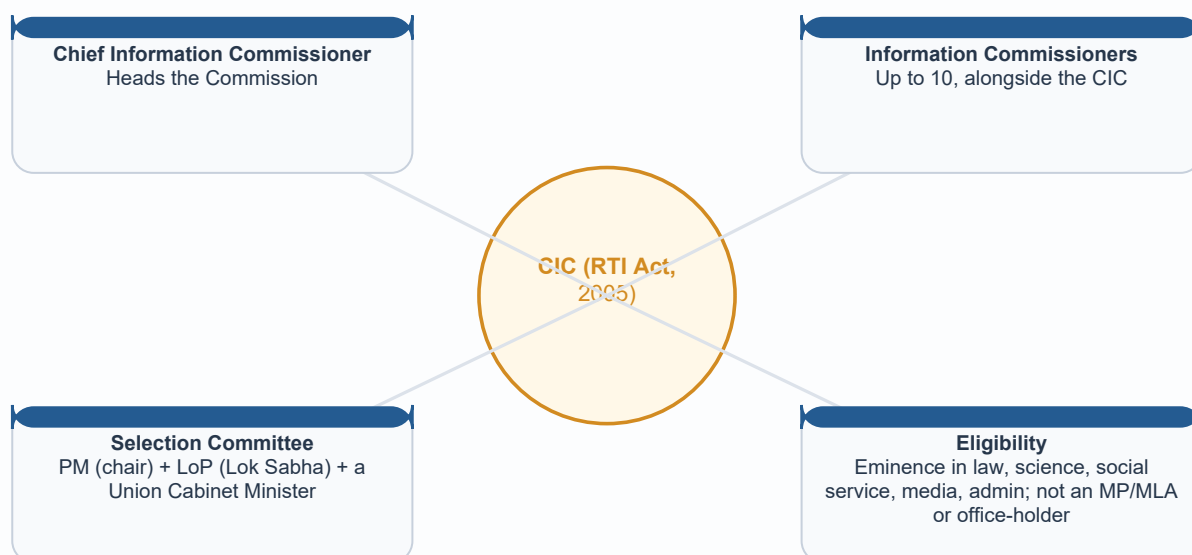
2. CIC — Composition, Eligibility & Appointment

GS-II Polity -
Institutional
Structure

NEWS TRIGGER

Debate over whether the CIC panel (PM-led, LoP included) provides genuine cross-party oversight recurs whenever Information Commissioner appointments are delayed or challenged in court.

CIC — COMPOSITION & SELECTION



CIC — MAXIMUM COMMISSION STRENGTH

Chief Information Commissioner

1

Information Commissioners (max)

10

Maximum total strength of the Commission = 11, as fixed by the RTI Act, 2005.

KEY DATA

Eligibility / Restriction	Detail
Eminence required in	Law, science and technology, social service, media, mass communication, administration and governance
Disqualification	Cannot be a sitting MP or MLA
Disqualification	Cannot hold any office of profit, or be connected with a political party or business
Re-appointment	NOT eligible after completing a term

STATIC THEORY

- The 3-member selection committee (PM, LoP-LS, a Cabinet Minister) is deliberately smaller than NHRC's 6-member panel — a design contrast worth remembering.
- Barring re-appointment is meant to prevent a commissioner from tailoring decisions to please the government of the day in hope of a second term.
- Eligibility is defined by 'eminence in public life' across broad fields, not a narrow judicial/administrative qualification — unlike NHRC or SHRC leadership.

MEMORY HOOK

CIC panel = PM + LoP (LS) + 1 Cabinet Minister | Max strength = 1 CIC + 10 ICs

MUST-KNOW FACTS

1. CIC composition: Chief Information Commissioner + up to 10 Information Commissioners.
2. Appointed by the President on a 3-member committee: PM (chair), LoP (Lok Sabha), a Union Cabinet Minister.
3. Commissioners are not eligible for re-appointment.
4. They cannot be sitting MPs/MLAs or hold an office of profit, party position, or business connection.

UPSC TRAPS

WRONG: CIC members are eligible for re-appointment like most statutory posts.

CORRECT: CIC/IC members are explicitly NOT eligible for re-appointment.

WRONG: The CIC selection committee has the same composition as the NHRC's.

CORRECT: CIC's is a 3-member panel (PM, LoP-LS, Cabinet Minister); NHRC's is a 6-member panel.

MAINS ANGLE

Framework: Intro — describe the 3-member selection committee and eminence-based eligibility. Body — evaluate whether a PM-led, smaller committee (versus NHRC's larger 6-member panel) offers weaker cross-party checks on appointment. Conclusion — assess reform proposals for broader selection-panel composition.

STUDY LINK

Polity -> NHRC's 6-member selection panel -> Comparative appointment-committee design

HIGH

3. CIC — Tenure & Removal: The 2019 Amendment Controversy

GS-II Polity -
Independence
Safeguards

NEWS TRIGGER

The RTI (Amendment) Act, 2019 remains the single most-cited example in Mains answers on 'executive control eroding statutory-body independence.'

KEY DATA

Feature	Before 2019 Amendment	After 2019 Amendment
Term	Fixed 5 years	3 years (under RTI Rules, 2019), subject to age 65
Salary/status	Parity with Election Commissioners	Decided by the Central Government
Governing instrument	The Act itself fixed these details	Central Government Rules now fix these details

HOW THE 2019 AMENDMENT CHANGED CIC TENURE



STATIC THEORY

- Before 2019, tenure and salary parity with the Election Commission were written directly into the Act — hard for the Executive to alter unilaterally.
- After 2019, these details were shifted to delegated legislation (Rules), which the Central Government can amend more easily than a parliamentary Act — this shift itself is the core independence concern, regardless of the current 3-year figure.
- Removal (for proved misbehaviour/incapacity) still requires a Supreme Court inquiry with binding advice — this specific safeguard was NOT touched by the 2019 Amendment.

MEMORY HOOK

2019 Amendment: Act → Rules shift for tenure/salary = independence concern (removal safeguard unchanged)

MUST-KNOW FACTS

1. The RTI (Amendment) Act, 2019 removed the fixed 5-year term and Election Commission salary parity.
2. Tenure, salary and service conditions are now decided by the Central Government (currently 3 years/age 65 under the RTI Rules, 2019).
3. CIC/IC removal by the President still requires a Supreme Court inquiry into proved misbehaviour/incapacity.

UPSC TRAPS

WRONG: CIC's term remains a fixed 5 years as originally enacted.

CORRECT: The 2019 Amendment removed the fixed term; current RTI Rules (2019) prescribe 3 years, subject to age 65.

WRONG: CIC salary is still at par with the Election Commissioners.

CORRECT: That parity was removed by the 2019 Amendment; salary is now Centre-determined.

MAINS ANGLE

"Recent amendments risk disempowering the Information Commissions." Framework: Intro — state the 2019 Amendment's core change (Act-fixed terms shifted to government-controlled Rules). Body — analyse the independence risk of Executive-controlled tenure/salary for a body that adjudicates against the Executive itself. Conclusion — evaluate whether restoring statutory (Act-level) tenure protection is a necessary reform.

STUDY LINK

Polity → Election Commission salary/tenure protections → Comparative independence design

HIGH

4. CIC — Powers, Functions & Enforcement

GS-II Polity -
Powers &
Functions

NEWS TRIGGER

CIC's penalty and compensation powers are what distinguish it from a purely advisory body like NHRC — a distinction UPSC frequently tests through comparative statements.

CIC — ENFORCEMENT TOOLKIT

Civil-Court Powers + Enforcement Authority

Examine Records Can examine any public record; none can be withheld from the Commission	Order Disclosure Can require the public authority to disclose information
Appoint a PIO Can direct appointment of a Public Information Officer where none exists	Penalise & Compensate Can impose penalties on erring officials and award compensation to complainants

KEY DATA

Ground for Complaint	Example
No PIO designated	Public authority has not appointed a Public Information Officer
Refusal to accept application	PIO refuses to receive an RTI application
Delay	Information not provided within the prescribed time
Unreasonable fee	Fee demanded is considered unreasonable
False/incomplete/misleading information	Information supplied is inaccurate or incomplete

STATIC THEORY

- Unlike NHRC, CIC's power to 'impose penalties' and 'award compensation' gives it direct enforcement teeth — not merely recommendatory authority.
- The power to examine 'any public record' (none can be withheld) is a strong transparency guarantee, subject only to the Act's own exemption clauses (Section 8).
- CIC's ability to order PIO appointment addresses a common ground-level obstruction to RTI implementation.

MEMORY HOOK

CIC can PENALISE + COMPENSATE — stronger enforcement than NHRC's advisory-only model

MUST-KNOW FACTS

1. CIC can receive and inquire into complaints on grounds such as no PIO, refusal, delay, unreasonable fees, or false/incomplete information.
2. It has civil-court powers and can examine any public record.
3. It can order disclosure, direct PIO appointment, impose penalties, and award compensation.
4. It submits an annual report to Parliament.

UPSC TRAPS

WRONG: CIC, like NHRC, can only make advisory recommendations.

CORRECT: CIC can impose penalties and award compensation directly — a materially stronger enforcement power than NHRC's advisory model.

MAINS ANGLE

Framework: Intro — outline CIC's direct enforcement toolkit (penalties, compensation, PIO appointment). Body — contrast with NHRC's advisory-only model to show that statutory design can vary significantly in enforcement strength even among similarly 'independent' commissions. Conclusion — argue that CIC's enforcement power is precisely why its independence (Module 3) matters so much.

STUDY LINK

Polity -> NHRC's advisory-only limitation -> Comparative enforcement design

HIGH**5. SIC — Composition, Appointment & Jurisdiction**

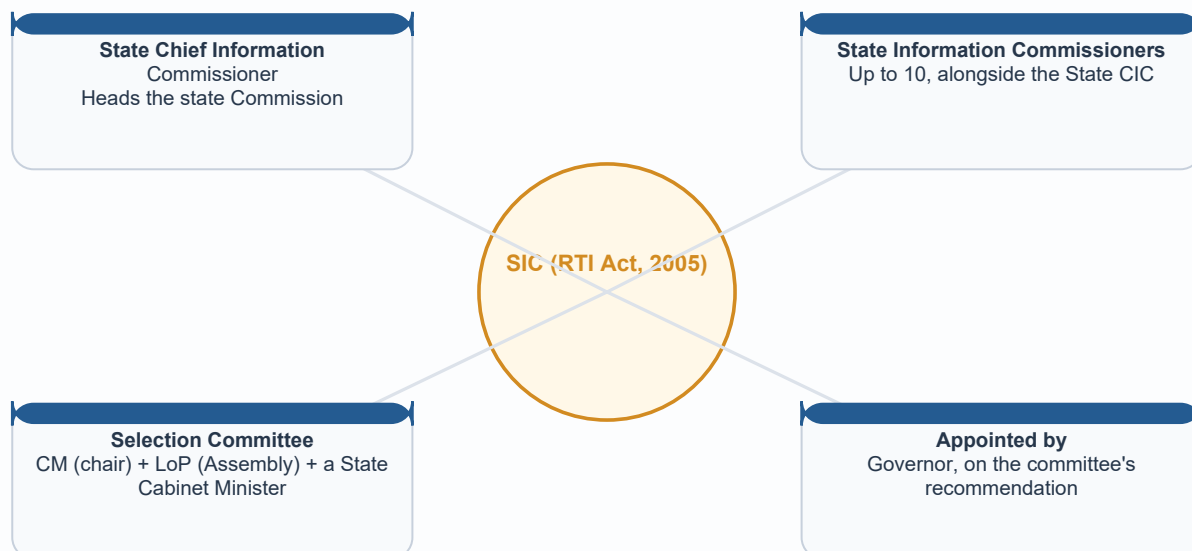
GS-II Polity -
State-Level
Institutions

NEWS TRIGGER

Vacancies in State Information Commissions have repeatedly drawn Supreme Court attention, making SIC's structure and appointment process a recurring current-affairs anchor.

INTRO & ORIGIN

The State Information Commission operates under the same RTI Act, 2005, at the state level — deciding appeals and complaints relating to state government offices.

SIC — COMPOSITION & SELECTION

KEY DATA

Aspect	Detail
Jurisdiction	Appeals/complaints on state government offices
Term	3 years under the 2019 Rules / maximum age 65
Selection committee	CM (chair), LoP (Assembly), a State Cabinet Minister

STATIC THEORY

- SIC mirrors CIC's structure almost exactly (Chief + up to 10 members), but at the state level and under a state-level selection committee.
- The 2019 Amendment's tenure/salary changes apply equally to SIC members, since both derive from the same central Act and Rules.
- SIC decides only state-government-related RTI matters — Central Government matters remain with CIC even if the complaint originates in a particular state.

MEMORY HOOK

SIC = CIC's mirror at state level | Panel = CM + LoP(Assembly) + State Cabinet Minister

MUST-KNOW FACTS

1. SIC composition: State CIC + up to 10 State Information Commissioners.
2. Appointed by the Governor on a committee: CM (chair), LoP (Assembly), a State Cabinet Minister.
3. SIC decides appeals/complaints relating to state government offices.
4. Term is 3 years under the 2019 Rules, subject to maximum age 65.

UPSC TRAPS

WRONG: SIC members are appointed by the President, like CIC.

CORRECT: SIC members are appointed by the Governor, on a state-level committee's recommendation.

MAINS ANGLE

Framework: Intro — position SIC as CIC's structural mirror at the state level. Body — examine how vacancies and understaffing at the state level (see Module 8) undermine the RTI regime disproportionately, since most RTI applications concern state/local matters. Conclusion — argue for time-bound appointment mandates to prevent SIC dysfunction.

STUDY LINK

Polity -> CIC composition -> State-level institutional mirroring

HIGH

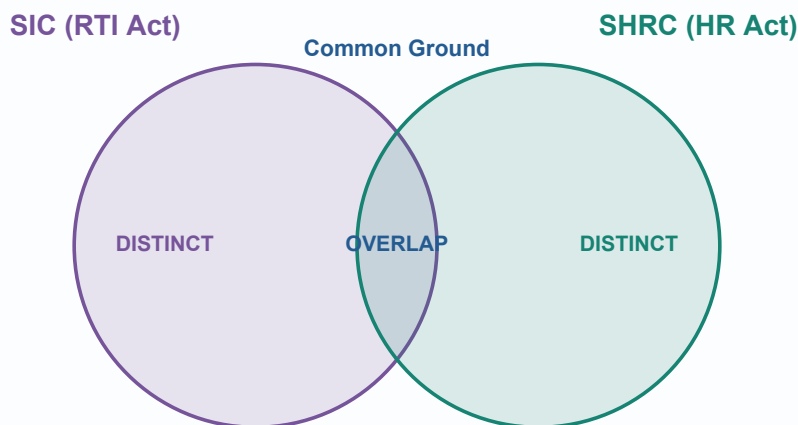
6. SIC — Removal by the Governor & the Contrast with SHRC

GS-II Polity -
Comparative
Institutions

NEWS TRIGGER

This single distinction — SIC removed by the Governor, but SHRC removed only by the President — is one of the sharpest UPSC traps across the statutory-bodies syllabus.

SIC VS SHRC — THE REMOVAL-AUTHORITY CONTRAST



SIC (RTI Act)

- Appointed by the Governor
- REMOVED by the Governor
- Same authority for both ends

Common Ground

- State-level statutory body
- Removal requires proved misbehaviour/incapacity + SC inquiry
- 3-year term (current rules), age ceiling applies

SHRC (HR Act)

- Appointed by the Governor
- REMOVED by the President
- Different authorities at each end

Both are state-level bodies appointed by the Governor, but only SHRC has a Governor/President split at removal.

SIC MEMBER REMOVAL PROCESS

1. Allegation raised

Of proved misbehaviour or incapacity against a sitting SIC member



2. Reference to the Supreme Court

For inquiry into the allegation



3. SC inquiry

Examines the matter and gives its finding



4. Removal by the Governor

Unlike SHRC, the Governor (not the President) orders removal

STATIC THEORY

- SIC breaks the pattern seen in SHRC: for SIC, the SAME authority (Governor) both appoints and removes.
- For SHRC, appointment (Governor) and removal (President) are split across two different constitutional authorities.
- This contrast is best remembered as a paired trap: 'Governor removes SIC; only the President removes SHRC.'

MEMORY HOOK

SIC: Governor appoints AND removes | SHRC: Governor appoints, PRESIDENT removes

MUST-KNOW FACTS

1. SIC members are removed by the Governor, for proved misbehaviour/incapacity following an SC inquiry.
2. This differs from SHRC, whose members are removed only by the President.
3. Both SIC and SHRC members are appointed by the Governor — the contrast lies specifically in removal.

UPSC TRAPS

WRONG: SIC and SHRC follow identical appointment-removal patterns since both are state-level bodies.

CORRECT: SIC is appointed AND removed by the Governor; SHRC is appointed by the Governor but removed only by the President.

MAINS ANGLE

Framework: Intro — state the SIC/SHRC removal-authority contrast as a design choice, not an oversight. Body — examine why Parliament may have chosen tighter Union-level oversight for human-rights removal (SHRC) but left information-commission removal fully at the state level (SIC). Conclusion — assess whether this inconsistency should be harmonised for uniform independence safeguards across state-level statutory bodies.

STUDY LINK

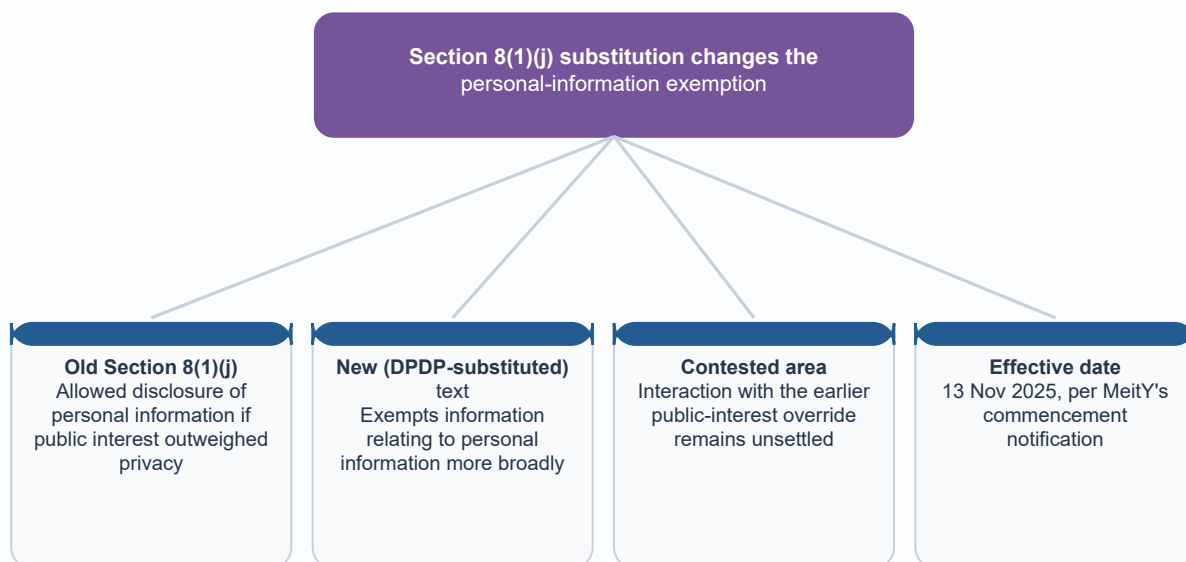
Polity -> SHRC removal mechanism (Module 7, NHRC-SHRC set) -> Cross-topic comparison

HIGH**7. CIC vs SIC & the DPDP Act, 2023 Interaction**

GS-II Polity -
Comparative
Institutions &
Data Protection

NEWS TRIGGER

The DPDP Act, 2023's Section 44(3) substitution of RTI Section 8(1)(j) took effect via MeitY's commencement notification on **13 Nov 2025**, directly reshaping what CIC/SIC can order disclosed.

DPDP ACT 2023 VS THE RIGHT TO INFORMATION

KEY DATA

Aspect	CIC	SIC
Level	Central Government + UTs	State Government
Appointing authority	President (PM-led committee)	Governor (CM-led committee)
Removing authority	President (SC inquiry)	Governor (SC inquiry)
Members	CIC + up to 10 Information Commissioners	State CIC + up to 10 State Information Commissioners
Term	3 years (RTI Rules, 2019) / age 65	3 years (RTI Rules, 2019) / age 65

STATIC THEORY

- CIC and SIC now apply the DPDP-amended Section 8(1)(j) when deciding whether personal information can be withheld — a live, evolving area of RTI jurisprudence.
- This is a direct example of one statute (DPDP Act, 2023) amending another (RTI Act, 2005) — a favourite UPSC 'Act amends Act' question pattern.
- The core tension is transparency (RTI's purpose) versus data protection (DPDP's purpose) — both legitimate constitutional values requiring judicial/administrative balancing.

MEMORY HOOK

DPDP Act 2023 Sec. 44(3) amended RTI Sec. 8(1)(j) — effective 13 Nov 2025

MUST-KNOW FACTS

1. DPDP Act, 2023 Section 44(3) substituted RTI Act Section 8(1)(j).
2. The change took effect from 13 Nov 2025 under MeitY's commencement notification.
3. The new text exempts information relating to personal information; its interaction with the public-interest override remains contested.

UPSC TRAPS

WRONG: The DPDP Act, 2023 has no bearing on the RTI Act.

CORRECT: DPDP Act Section 44(3) directly substituted RTI Section 8(1)(j), effective 13 Nov 2025.

MAINS ANGLE

"Information Commissions vs the right to privacy — balancing transparency and data protection." Framework: Intro — introduce the Section 8(1)(j) substitution as a direct legislative intersection of RTI and DPDP. Body — analyse the tension between transparency-as-accountability and privacy-as-a-fundamental-right (Puttaswamy). Conclusion — argue for retaining a calibrated public-interest override rather than a blanket personal-information exemption.

STUDY LINK

Polity -> Right to Privacy (Puttaswamy) -> RTI-DPDP interaction

HIGH

8. Independence Debate — Vacancies, Pendency & Institutional Erosion

GS-II Polity -
Institutional
Reform

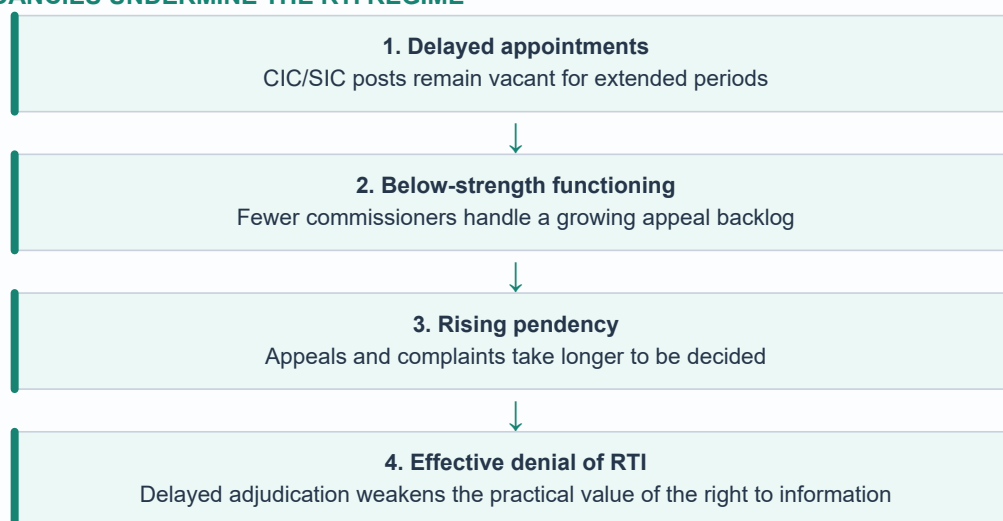
NEWS TRIGGER

The Supreme Court has repeatedly flagged Information Commissions functioning below strength or remaining defunct, delaying appeals across the country — a live, ongoing governance concern.

KEY DATA

Concern	Institutional Consequence
Vacancies in CIC/SIC	Commissions function below sanctioned strength
Some SICs functioning as defunct	Appeals remain undecided for long periods in affected states
2019 Amendment tenure changes	Shorter, government-controlled tenure may discourage eminent persons from serving

HOW VACANCIES UNDERMINE THE RTI REGIME



STATIC THEORY

- Vacancy and pendency concerns are structural, not one-time events — they recur across states and years, so this module deliberately avoids asserting a specific undated count.
- The Supreme Court's repeated flagging of this issue shows judicial concern over the practical erosion of a statutory right through administrative neglect (non-appointment), even without any formal amendment of the law.
- This links directly to the 2019 Amendment debate (Module 3): weaker tenure/salary security may make eminent persons less willing to serve, compounding the vacancy problem.

MEMORY HOOK

Vacancies + Pendency = Slow Death of RTI (SC has flagged this repeatedly)

MUST-KNOW FACTS

1. Several Information Commissions have functioned below sanctioned strength or remained defunct at times.
2. The Supreme Court has flagged vacancies and rising pendency as concerns for the RTI regime.
3. This is a structural, recurring issue rather than a single dated event — avoid citing an undated specific count.

UPSC TRAPS

WRONG: Vacancies in Information Commissions are a one-time historical problem now fully resolved.

CORRECT: This remains a recurring, structural concern repeatedly flagged by the Supreme Court.

MAINS ANGLE

"Vacancies in Information Commissions: a slow death of the RTI regime?" **Framework:** Intro — state the vacancy/pendency problem as flagged by the Supreme Court. Body — link institutional neglect (non-appointment) to the practical erosion of a statutory right, even without formal amendment. Conclusion — recommend time-bound appointment mandates and transparent vacancy reporting as accountability measures.

STUDY LINK

Polity -> RTI (Amendment) Act 2019 tenure changes -> Cumulative independence erosion

HIGH**9. Verified CA/PYQ Anchors & Mains Practice Frameworks**

GS-II Polity -
Revision &
Answer Writing

NEWS TRIGGER

This closing module consolidates every verified CA anchor from the module set — the 2019 Amendment, the DPDP Act 2023 interaction, and the vacancy/pendency crisis — into one revision unit.

STATIC THEORY

- Revision anchor 1: CIC/SIC are statutory (RTI Act, 2005), never constitutional.
- Revision anchor 2: the 2019 Amendment shifted tenure/salary from the Act to Central Government Rules — currently 3 years/age 65.
- Revision anchor 3: SIC is appointed AND removed by the Governor; contrast with SHRC (Governor appoints, President removes).
- Revision anchor 4: DPDP Act, 2023 Section 44(3) substituted RTI Section 8(1)(j), effective 13 Nov 2025 — an active, contested interaction.
- Revision anchor 5: vacancies and pendency are a recurring, Supreme-Court-flagged structural concern, not a one-time event.

MEMORY HOOK

Statutory, not Constitutional | 2019: Act -> Rules for tenure | SIC: Governor both ends | DPDP amends RTI Sec. 8(1)(j)

MUST-KNOW FACTS

- 1. CIC (2005) and SIC (state-level, same Act) are both statutory bodies under the RTI Act, 2005.
- 2. The 2019 Amendment removed fixed tenure/salary protections from the Act itself.
- 3. SIC's removal authority (Governor) differs from SHRC's (President) despite similar appointment patterns.
- 4. DPDP Act, 2023 Section 44(3) reshaped the RTI Act's personal-information exemption from 13 Nov 2025.

UPSC TRAPS

- WRONG:** CIC and SIC have identical appointment AND removal authorities in every respect.
- CORRECT:** Appointment differs by level (President/Centre vs Governor/State), and SIC's removal (Governor) differs structurally from SHRC's (President) in the parallel human-rights framework.
- WRONG:** The RTI Act's transparency mandate is unaffected by any later legislation.
- CORRECT:** The DPDP Act, 2023 directly amended RTI Section 8(1)(j), effective 13 Nov 2025.

CIC/SIC — CONCEPT LINKS ACROSS THE SYLLABUS

Core Concept	Linked Concept	Why It Matters
RTI Act mandate	Article 19(1)(a) — freedom of speech & expression	RTI is judicially read as flowing from this fundamental right
CIC tenure (2019 Amendment)	NHRC/CVC removal safeguards	Recurring theme: statutory-body independence vs executive-controlled tenure
SIC removal by Governor	SHRC removal by President	Classic paired UPSC trap on removal-authority asymmetry
DPDP Act Sec. 44(3)	Right to Privacy (Puttaswamy, 2017)	Tests the transparency-vs-privacy balance in constitutional law
Vacancies & pendency	Access to justice / good governance	Links institutional design to real-world delivery of rights

MAINS ANGLE

Consolidated Mains Framework — Intro: define CIC/SIC as the twin statutory pillars of the RTI regime. Body: (a) institutional design — composition, appointment, tenure since 2019; (b) enforcement strength — penalties and compensation, unlike advisory-only bodies; (c) contemporary stress points — DPDP Act interaction and chronic vacancies. Conclusion: argue that RTI's long-term credibility depends on restoring statutory (not merely rule-based) tenure protection and timely appointments.

STUDY LINK

Polity -> Lokpal & Lokayuktas -> Comparative transparency/accountability architecture